

## Calendar Line 10

**Case Name:** *Hung Le vs Khung Tran*

**Case Number:** 25CV456065

Plaintiff/Cross-Defendant, Hung Le, (“Le”) seeks an order giving his action a preference under Civil Code §36(d) and setting the matter for trial within 120 days pursuant to Civil Code § 36(f).

A discretionary preference motion must be accompanied by “clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference.” (Civ. Code, § 36(d).)

Plaintiff essentially asks the Court to scrutinize the 65-pages submitted as Exhibit 1 to the motion and glean or infer from those pages clear and convincing documentation that raises a substantial medical doubt of his survival beyond six months. Plaintiff’s counsel tells the Court that “[t]he statute doesn’t require a good or an accurate motion, so long as it is accompanied by clear and convincing medical documentation. We indeed submitted “a” motion. I would call the medical records submitted therewith clear and convincing evidence any day of the week.” This is curious advocacy and belies the existence of clear and convincing documentation, which one presumes could be easily identified in a “good” and “accurate” way if it existed. Moreover, “Exhibit 1” is not properly authenticated, supported only by counsel’s declaration that Le “has a host of medical conditions as set out in Exhibit 1, all of which continue to progress.” (Cowan Decl., ¶ 7.) Lastly, the documents do not show a substantial *medical* doubt of survival beyond six months. Under section 36(d), the motion must be accompanied by clear and convincing medical documentation that raises the appropriate medical doubt *and* satisfies the court that the interests of justice will be served by granting the preference. Without sufficient documentation, the Court does not reach the interests of justice or consider exercising discretion.

The Motion for a Preference is DENIED.

The Court will prepare the final order.

The parties are to appear at 9:00 a.m. for the Further Case Management Conference.

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